

M/s Ganga Devi Pyare Lal v. State of U.P.

Allahabad High Court · Division Bench · 4 May 2018 · WRIT - C No. 14703 of 2017 · **Writ dismissed as withdrawn with liberty to approach the competent authority under the Supply Code.**

HEADNOTE

A consumer writ over outstanding electricity bills was dismissed as withdrawn, with liberty to approach the competent authority under the U.P. Electricity Supply Code, 2005. Earlier listing orders had required the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam, Firozabad, to produce bill and payment records. No finding was recorded on those bills.

FACTUAL SUMMARY

M/s Ganga Devi Pyare Lal filed Writ-C No. 14703 of 2017 against the State of U.P. and Dakshinanchal Vidyut Vitran Nigam officers. On 11 April 2017 a Division Bench directed the Executive Engineer, Firozabad, to appear with complete records of outstanding bills and payments. He appeared on 20 April 2017 and filed an affidavit; further personal appearance was exempted. After hearing on 4 May 2018, counsel sought leave to withdraw and approach the competent authority under the Supply Code.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

withdrawal with liberty to competent authority

HOLDING

The writ was dismissed as withdrawn with liberty to approach the competent authority under the U.P. Electricity Supply Code, 2005. Outstanding bills and payments were not decided. ¶ 3

PRINCIPLE TAGS

procedural-listing-no-construction

A consumer writ over outstanding electricity bills was dismissed as withdrawn, with liberty to approach the competent authority under the U.P. Electricity Supply Code, 2005. Earlier listing orders had required the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam, Firozabad, to produce bill and payment records.. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY AMOUNT REMAINED OUTSTANDING, AND THE CORRECTNESS OF THE BILLS AND PAYMENTS.

¶ 1-3